

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sara Griffin	Team: Squad #04	CCRB Case #: 201808154	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Friday, 09/28/2018 5:00 PM	Location of Incident: Victory Boulevard and Monroe Avenue	18 Mo. SOL 11/12/2020	Precinct: 120
Date/Time CV Reported Tue, 10/02/2018 1:11 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 10/02/2018 1:11 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Mohsin Mohsin	20781	952026	GANG SI

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Richard Browne	00352	950113	GANG SI
2. POM Gary Leite	27464	948376	GANG SI

Officer(s)	Allegation	Investigator Recommendation
A . POM Mohsin Mohsin	Force: Police Officer Mohsin Mohsin used physical force against § 87(2)(b)	A . Exonerated
B . POM Mohsin Mohsin	Abuse: Police Officer Mohsin Mohsin damaged § 87(2)(b)'s property.	B . Unsubstantiated

Case Summary

On October 2, 2018, § 87(2)(b) called the CCRB and filed the following complaint. On October 2, 2018, § 87(2)(b) called IAB and filed a duplicate complaint, generating IAB Log # 18-39076. On September 28, 2018, at approximately 5:00 p.m., § 87(2)(b) was walking along Victory Boulevard and Monroe Avenue in Staten Island. Police Officer Mohsin Mohsin of the Staten Island Gang Squad allegedly ran after § 87(2)(b) grabbed him and threw him to the ground (**Allegation A-Force, Exonerated**). PO Mohsin allegedly damaged § 87(2)(b)'s property (**Allegation B- Abuse of Authority, Unsubstantiated**). § 87(2)(b) was arrested for

§ 87(2)(a) 160.50

§ 87(2)(b) (Board Review 1).

There is no known video footage of the incident.

Findings and Recommendations

Allegation A- Abuse of Authority: Police Officer Mohsin Mohsin used physical force against

§ 87(2)(b)

It is undisputed that § 87(2)(b) had a warrant for his arrest out of § 87(2)(b). It is undisputed that § 87(2)(b) was in possession of marijuana and an open bottle of Georgi vodka while walking down Victory Boulevard § 87(2)(g)

§ 87(2)(b). It is undisputed that after observing § 87(2)(b) PO Mohsin approached § 87(2)(b) from behind, and utilized a forcible takedown.

§ 87(2)(b) testified (Board Review 2) that he visited several stores along Victory Boulevard to purchase food items. § 87(2)(b) acknowledged having an open 375-milliliter Georgi bottle in his pants pocket, but denied the any part of the bottle was exposed. § 87(2)(b) had marijuana bud in his wallet. § 87(2)(b) denied smoking the marijuana at any point. § 87(2)(b) noticed a male, later identified as Police Officer Richard Browne, walking on the street in the same direction and an unmarked silver van parked nearby. § 87(2)(b) was listening to music on his phone, when he heard loud footsteps coming from behind him. § 87(2)(b) saw PO Mohsin running towards him from behind in the reflection of a nearby store's window. Without saying anything, PO Mohsin grabbed onto § 87(2)(b) in the rib cage area and threw him to the ground. § 87(2)(b)'s knees made contact with the ground first, causing abrasions, followed by his chest and then face. § 87(2)(b) was handcuffed and transported to the 120th Precinct stationhouse. § 87(2)(b) alleged he was refused medical attention at the stationhouse for hours by PO Mohsin, and only when the next platoon of officers began was § 87(2)(b) transported to § 87(2)(b).

§ 87(2)(a) PHL § 18(6)

The handwritten Medical Treatment of Prisoner Report (Board Review 7) prepared for § 87(2)(b) documents his signature refusing medical aid.

PO Mohsin testified (Board Review 3) that he and two other officers were canvassing in an unmarked van for an unrelated case when he observed § 87(2)(b) smoking a marijuana cigarette. PO Mohsin was approximately one to two car lengths away from § 87(2)(b) and smelled an odor of marijuana. PO Mohsin exited the vehicle and stated, “Police.” § 87(2)(b) fled on foot against the direction of traffic. PO Mohsin and the other officers continued their canvass. Approximately five to seven minutes later, PO Mohsin observed § 87(2)(b) walking along Victory Boulevard still holding on to the lit marijuana cigarette. PO Mohsin and PO Browne exited the van and followed § 87(2)(b). PO Mohsin approached § 87(2)(b) from behind and “bear hugged” him by grabbing his torso. § 87(2)(b) turned around and moved his feet in response. PO Mohsin identified himself as a police officer and guided § 87(2)(b) to the ground, while holding onto his torso. PO Mohsin denied issuing any commands to § 87(2)(b) prior to bear hugging him, as he feared § 87(2)(b) might flee again. § 87(2)(b)'s knees sustained scrapes from being brought to the ground. PO Mohsin learned of § 87(2)(b)'s warrant at the stationhouse.

PO Mohsin's Threat, Resistance, and Injury Report (Board Review 4) was consistent with his statement that a forcible takedown was used to stop a fleeing suspect.

Marijuana packaged in a cigar wrapper was recovered by PO Mohsin from § 87(2)(b) and was vouchered as arrest evidence. The voucher does not specify if the marijuana was burned or unburned. Two zip lock bags of marijuana were also recovered, following a search incident to lawful arrest, and were vouchered as arrest evidence (Board Review 5).

§ 87(2)(g)
§ 87(2)(b). PO Browne was aware that § 87(2)(b) had an open felony warrant for his arrest through an open investigation, but PO Browne did not know what § 87(2)(b) looked like nor had he seen a picture of him. PO Mohsin pointed § 87(2)(b) out by name when they observed him smoking a marijuana cigarette in the initial interaction. While following behind § 87(2)(b) in the second interaction, PO Browne and § 87(2)(b) made eye contact and it appeared that § 87(2)(b) was going to flee for a second time. Before § 87(2)(b) could flee, PO Mohsin hugged him from behind. PO Mohsin and § 87(2)(b) appeared to trip on each other's feet and fell to the ground.

Patrol Guide Procedure 221-01 (Board Review 8) states that the use of force must be reasonable under the circumstances.

§ 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

§ 87(2)(g)

. Therefore, it is recommended that **Allegation A** be closed as **Exonerated**.

Allegation B-Abuse of Authority: Police Officer Mohsin Mohsin damaged § 87(2)(b)'s property.

§ 87(2)(b) testified (Board Review 2) that he dropped his iPhone due to the force of PO Mohsin's tackle. PO Mohsin then stepped on § 87(2)(b)'s iPhone and stated he would not be needing it. § 87(2)(b)'s iPhone sustained cracks on the screen due to PO Mohsin's action.

A photograph of § 87(2)(b)'s iPhone was taken during his CCRB interview (Board Review 9). § 87(2)(b) alleged PO Mohsin's action caused the cracks in the lower left corner.

PO Mohsin testified (Board Review 3) and did not recall if § 87(2)(b) was utilizing his iPhone prior to his forcible takedown. PO Mohsin denied stepping on § 87(2)(b)'s iPhone or telling him that he would not be needing it. § 87(2)(b) never complained of damage to his iPhone. PO Mohsin noticed § 87(2)(b)'s iPhone cellphone was cracked while he was vouchering it at the stationhouse.

PO Browne testimony (Board Review 6) was consistent with that of PO Mohsin's statement.

§ 87(2)(g)

. Therefore, it is recommended that **Allegation B** be closed as **Unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 10).
- PO Mohsin has been a member of service for seven years and has been a subject in two CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- As of January 29, 2019, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (Board Review 13).

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date